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BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

Reserved On: 15.09.2026	Pronounced On: 09.10.2026

CORAM

THE HON'BLE MR JUSTICE K.K. RAMAKRISHNAN

CMA(MD) No. 104 of 2024

CNR:{HCMD011231132023}

Jegan
S/o.Jeyaraj,
No.10/188, Middle Street,
Sankaran Kudiruppu,
Sathankulam Taluk,
Now residing at
2nd Cross Stret,
Mullai Nagar,
Tirunelveli-627 007

..Petitioner(s)

Vs

1.Anish
S/o.Mani,
No.14/8/20, Palakulam,
Kulappuram,
Kanykumari-629 153
2.HDFC ERGO Geneal Insurance Company ltd.,
Through its Branch manager,
No.528, 2nd floor,
Anna Salai,
Teynampet,
Chennai-600 018

..Respondent(s)

Prayer: Civil Miscellaneous Appeal has been filed under section 173 of Motor Vehicles Act to allow this appeal, enhance the award amont in M.C.O.P.No. 26 of 2018 on the file of the Motor Accident Claims Tribunal Authority, (Special Sub Judge) Tirunelveli, dated 25.07.2023.

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For Petitioner(s): M/s.T.Selvakumaran
K.Jeyabalan

For Respondent(s): M/s.J.S.Murali
For R2 Sr.6895 Dt.21.02.2024
Court Notice

R1 - Anish (through Court)

JUDGMENT

The claimant in M.C.O.P. No.26 of 2018, on the file of the Special Sub Court, Motor Accident Claims Tribunal, Tirunelveli, has filed the present C.M.A.(MD).No.104 of 2024 seeking enhancement of the compensation awarded by the Tribunal vide order dated 25.07.2023.

2.**Facts of the case:**

2.1.Since the present appeal is confined to the quantum of compensation, there is no necessity to undertake an elaborate discussion on the negligence or liability aspects. The brief facts relevant for determination of the present appeal are as follows:

2.2.On 16.11.2017 at about 7.30 p.m., the claimant was riding his two-wheeler bearing Registration No.TN-69-EA-3318 on the Peikkulam–Sakkankulam Main Road near Karungal Bridge. At that time, another two-wheeler bearing Registration No.TN-75-T-0838, insured with the second respondent Insurance Company, came in the opposite direction in a rash and

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negligent manner and dashed against the claimant's two-wheeler. Due to the impact, the claimant fell down and sustained multiple injuries, particularly a crush injury to his right foot. He was admitted in the hospital and underwent treatment.

2.3.According to the claimant, owing to the injuries sustained in the accident, he was unable to continue his avocation of selling home appliances and carrying on agricultural activities. A criminal case was also registered in respect of the accident.

2.4.The Insurance Company filed its counter denying the manner of the accident and disputing the quantum of compensation claimed.

2.5.Before the Tribunal, the claimant examined himself as P.W.1 and examined the doctor as P.W.2. Exs.P1 to P14 were marked on his side. Exs.X1 to X5 were marked through P.W.2. The Insurance Company examined R.W.1 and marked the insurance policy. Ex.C1, the disability certificate issued by the Medical Board, was also marked.

3.**Findings of the Tribunal:**

3.1.Upon appreciation of the evidence, the Tribunal fixed the negligence on the rider of the offending vehicle and awarded a sum of Rs.4,78,790/- as compensation with interest at 7.5% per annum under the following heads:

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Sl.No.	*Heads*	*Amount in Rs.*
1	Disability Rs.5,000/- X 15%	75,000/-
2	Loss of income	54,000/-
3	Medical Expenses	2,82,787/-
4	Pain and Sufferings	25,000/-
5	Loss of convenience	25,000/-
6	Transport Expenses	5,000/-
7	Attendant Charges	5,000/-
8	Extra Nourishment	5,000/-
Total		***4,76,787/-***
Rounded Off		***4,76,790/-***

3.2.Challenging the quantum, the present appeal has been filed.

4.**Submissions of the learned counsel appearing for the appellant:**

4.1.The learned counsel appearing for the claimant submitted that the claimant had sustained a crush injury and fracture in the right foot and had undergone multiple surgeries, including skin grafting. The Medical Board assessed his permanent disability at 15%. It was submitted that the Tribunal had awarded only Rs.75,000/- towards permanent disability and that, having regard to the applicable rate of Rs.7,000/- per percentage for an accident of the year 2017, the claimant was entitled to receive Rs.1,05,000/- under the said head. It was further submitted that the claimant was unable to resume his avocation for six months and that the amount awarded towards loss of income during the treatment period was inadequate. The learned counsel also sought enhancement

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under the heads of pain and suffering, future medical expenses and attendant charges.

5.**Submissions of the learned counsel appearing for the respondent:**

5.1.The learned counsel appearing for the Insurance Company opposed the claim for enhancement and submitted that the Tribunal had awarded just and reasonable compensation under all the relevant heads. It was contended that there was no sufficient medical evidence to establish the necessity for future medical expenses and, therefore, no further enhancement was warranted.

6.This Court considered the rival submissions and perused the entire records.

7.The following question arises for consideration:

7.1.Whether the claimant is entitled to enhancement of the compensation awarded by the Tribunal?

8.**Discussion and findings:**

8.1.The evidence of P.W.1 establishes that the claimant sustained a crush injury to the right foot with fracture of the metatarsal bones. The medical records further establish that he underwent surgeries and skin grafting. The Medical Board assessed his permanent disability at 15%, and there is no material to indicate that the claimant would totally recover from the disability.

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8.2.In respect of permanent disability, the Tribunal had awarded Rs. 75,000/-. Having regard to the nature of the injury, the date of the accident and the rate of Rs.7,000/- per percentage applicable for the relevant period, the claimant is entitled to Rs.1,05,000/- towards permanent disability. Thus, the amount under this head is enhanced to Rs.1,05,000/-.

8.3.As regards loss of income during the period of treatment and recovery, the claimant specifically deposed that he was unable to resume his avocation for six months. The medical records also indicate that he continued to undergo treatment during the relevant period. Therefore, six months may reasonably be taken as the period during which he was unable to pursue his avocation. Accordingly, the loss of income during the treatment period is assessed at **Rs.90,000/- (Rs.15,000 × 6)**.

8.4.The Tribunal had awarded Rs.25,000/- towards pain and suffering. Considering the crush injury, fracture, multiple surgeries and skin grafting undergone by the claimant, the amount under this head is enhanced by a further sum of Rs.15,000/-.

8.5.The medical evidence also shows that an nail was inserted during the course of treatment. Having regard to the nature of the injury and the possibility of future medical intervention, a sum of Rs.50,000/- is awarded towards future medical expenses.

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8.6.The Tribunal had awarded only Rs.5,000/- towards attendant charges. Considering the prolonged treatment and the nature of the injuries, the same is enhanced to Rs.20,000/-.

9.**Conclusion:**

9.1.Accordingly, the compensation awarded by the Tribunal is enhanced under the aforesaid heads. The revised compensation shall be calculated accordingly, which reads as follows:

Sl. No.	***Heads***	***Award of the Tribunal***	***Re-quantified by this Court***	***Status***
1	Disability (15%)	75,000/-	1,05,000/-	Enhanced
2	Loss of income	54,000/-	90,000/-	Enhanced
3	Medical Expenses	2,82,787/-	2,82,787/-	Confirmed
4	Pain and Sufferings	25,000/-	40,000/-	Enhanced
5	Loss of convenience	25,000/-	25,000/-	Confirmed
6	Transport Expenses	5,000/-	5,000/-	Confirmed
7	Attendant Charges	5,000/-	20,000/-	Enhanced
8	Extra Nourishment	5,000/-	5,000/-	Enhanced
9	Future medical expenses	------	50,000/-	Awarded
Total		***4,76,787/-***	***6,22,787/-***	***Enhanced***
Rounded Off		***4,76,790/-***	***6,22,790/-***	***Enhanced***

10.**Result:**

10.1.In the result, the C.M.A.(MD).No.104 of 2024 is **partly allowed**.

10.2.The award dated 25.07.2018 in M.C.O.P.No.26 of 2018 on the file of the Motor Accident Claims Tribunal Authority, Special Sub Judge,

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Tirunelveli, is modified and the compensation is enhanced from Rs.4,76,790/- to Rs.6,22,790/- together with interest at the rate of 7.5% per annum from the date of the claim petition.

10.3.The insurance company is directed to deposit the entire award amount of Rs.6,22,790/-, together with interest at the rate of 7.5% per annum from the date of the claim petition, within a period of eight weeks from the date of receipt of a copy of this judgment.

10.4.On such deposit, the claimant is entitled to withdraw the same, in accordance with law.

10.5.If the insurance company has already deposited any amount in excess of the modified award amount, it is permitted to withdraw the excess amount.

There shall be no order as to costs.

09-10-2026

Index: Yes/No
Speaking/Non-speaking order
Neutral Citation: Yes/No

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To

1.Anish
S/o.Mani,
No.14/8/20, Palakulam,
Kulappuram,
Kanykumari-629 153

2.HDFC ERGO Geneal Insurance Company ltd.,
Through its Branch manager,
No.528, 2nd floor,
Anna Salai,
Teynampet,
Chennai-600 018

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K.K.RAMAKRISHNAN, J.

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